

# **FUNDAMENTAL RIGHTS AND LIBERTIES OF CITIZENS UNDER CONSTITUTION OF PAKISTAN 1973**

The Constitution of 1973 of Pakistan outlines a range of fundamental rights and liberties guaranteed to all citizens. These rights and liberties are designed to protect individual freedoms and ensure that the government operates within the framework of democratic principles and respect for human dignity. Here's an overview of what is meant by rights and liberties in the context of the 1973 Constitution:

## **Fundamental Rights**

The 1973 Constitution of Pakistan enshrines a set of fundamental rights in Part II, known as the "Fundamental Rights and Principles of Policy." These rights are legally protected and can be enforced through the judiciary. Key rights include:

### **i. Right to Freedom (Articles 9-11):**

- **Article 9:** Guarantees the right to life and liberty, ensuring that no person can be deprived of life or personal liberty except in accordance with the law.
- **Article 10:** Provides protection against arbitrary arrest and detention. It mandates that no person can be detained without being informed of the reasons for their detention and the right to a fair trial.
- **Article 11:** Prohibits slavery, forced labor, and child labor, ensuring that individuals are free from exploitation and coercion.

### **ii. Right to Fair Trial (Article 10A):**

- Ensures that every person is entitled to a fair trial and due process of law. This includes the right to a hearing by an independent and impartial tribunal.

### **iii. Right to Privacy (Article 14):**

- Protects individuals from arbitrary interference with their privacy, family, home, or correspondence. This right ensures that personal



privacy is respected and protected by law.

**vi. Right to Freedom of Assembly and Association (Articles 16-17):**

- **Article 16:** Guarantees the right to assemble peacefully and without arms. This right is subject to reasonable restrictions in the interest of public order.
- **Article 17:** Ensures the freedom to form associations and unions, including political parties and trade unions.

**v. Freedom of Speech and Expression (Article 19):**

- Guarantees the right to freedom of speech and expression, including the freedom of the press. This right is subject to reasonable restrictions imposed by law in the interest of sovereignty, integrity, morality, or public order.

**vi. Right to Religion and Belief (Article 20-22):**

- **Article 20:** Guarantees the right to profess, practice, and propagate any religion. It also ensures that religious minorities have the right to establish and maintain religious institutions.
- **Article 21:** Prohibits discrimination on the basis of religion in public employment and services.
- **Article 22:** Provides protection against forced religious conversion and guarantees the right to education without discrimination based on religion.

**vii. Right to Equality (Article 25):**

- Every citizen is entitled to equal protection of the law. This article guarantees that all individuals are equal before the law and prohibits discrimination on the basis of religion, race, caste, sex, or place of birth.

**viii. Rights of Minorities (Articles 25-28):**

- Guarantees the protection of the rights of religious and ethnic minorities, including the right to preserve their culture, language, and heritage. It ensures that minorities have equal opportunities and protection under the law.

**Liberties and Freedoms under constitution of 1973**

In addition to fundamental rights, the Constitution also provides for various liberties that are essential to democratic governance and personal freedom. These include:

**i. Economic Freedoms:** Individuals have the freedom to engage in economic activities, including trade and profession, subject to laws and regulations designed to promote public welfare and prevent monopolistic practices.

**ii. Freedom from Arbitrary Actions:** The Constitution ensures that government actions are subject to legal scrutiny and that individuals are protected from arbitrary and unjust actions by the state.

**iii. Freedom of Movement:** Citizens have the right to move freely within Pakistan and to reside in any part of the country. This freedom is subject to reasonable restrictions imposed by law.